

Court No. - 32

Case :- WRIT - C No. - 13671 of 2020

Petitioner :- M/S Balji Ice And Chilling Plant

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ranjit Saxena

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

Heard Sri Ranjit Saxena, learned counsel for the petitioner, learned Standing Counsel appearing for the State-respondents and Sri H.C.Chaurasia holding brief of Sri Baleshwar Chaturvedi, learned counsel for the electricity department.

Learned counsel for the respondents prays for and is granted six weeks time to counter affidavit. Rejoinder affidavit, if any, be filed within three weeks thereafter. List thereafter.

Order Date :- 9.9.2020

samz

Court No. - 32

Case :- WRIT - C No. - 13671 of 2020

Petitioner :- M/S Balji Ice And Chilling Plant

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ranjit Saxena

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Shashi Kant Gupta,J.

Hon'ble Pankaj Bhatia,J.

Sub: Civil Misc. Urgent Application.

Put up this matter with previous papers on 22.10.2020.

Order Date :- 20.10.2020

MLK

Court No. - 46

Case :- WRIT - C No. - 13671 of 2020

Petitioner :- M/S Balji Ice And Chilling Plant

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ranjit Saxena

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis,J.

Hon'ble Vivek Varma,J.

At the request of learned counsel for the petitioner, let the case be placed as unlisted on 2.11.2020 before the appropriate Bench.

Order Date :- 22.10.2020

M. Tariq

Court No. - 5

Case :- WRIT - C No. - 13671 of 2020

Petitioner :- M/S Balji Ice And Chilling Plant

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ranjit Saxena

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

As prayed, put up tomorrow in the additional cause list.

Order Date :- 2.11.2020

Shahroz

(Dr. Y.K. Srivastava,J.) (S.P. Kesarwani,J.)

Court No. - 5

Case :- WRIT - C No. - 13671 of 2020

Petitioner :- M/S Balji Ice And Chilling Plant

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ranjit Saxena

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

Three weeks' further time is granted to the respondents to file a counter affidavit. Petitioner would have a week thereafter to file a rejoinder affidavit.

Put up in the additional cause list on 01.12.2020.

Order Date :- 3.11.2020

Imroz

(Dr. Y. K. Srivastava, J.) (Surya Prakash Kesarwani, J.)

Court No. - 34

Case :- WRIT - C No. - 13671 of 2020

Petitioner :- M/S Balji Ice And Chilling Plant

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ranjit Saxena

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Jayant Banerji,J.

As prayed by learned counsel for the petitioner, one week time is granted to file rejoinder affidavit.

Put up this matter on 14th December, 2020 in the additional cause list.

Order Date :- 1.12.2020

Brijesh

Court No. - 34

Case :- WRIT - C No. - 13671 of 2020

Petitioner :- M/S Balji Ice And Chilling Plant

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ranjit Saxena

Counsel for Respondent :- C.S.C.,Baleshwar
Chaturvedi,Shrawan Kumar Tripathi

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Jayant Banerji,J.

Heard learned counsel for the petitioner and perused the record. Shri Shrawan Kumar Tripathi, learned counsel for the respondents is present.

The present petition is directed against the notice dated 23.6.2020 whereby a sum of Rs.13,03,258/- has been demanded from the petitioner and the electricity connection has been disconnected on 11.6.2020. Further prayer is that the respondents be directed to refund or adjust the excess electricity charge realised from the petitioner for applying wrong tariff of HV-2 instead of LMV-6. The petitioner further demanded compensation for illegal disconnection of the electricity and seeks a mandamus commanding the respondents to restore electricity connection.

The submission of the learned counsel for the petitioner is that the notice dated 23.6.2020 was issued to the petitioner without any inspection of the premises in question or without providing any show cause notice to explain its stand regarding the change of tariff from LMV-6 to HV-2.

The said submission of the learned counsel for the petitioner is not found correct, inasmuch as, alongwith the counter affidavit, MRI report of the connection in question has been appended to justify change of tariff plan and the notice for realisation of the

electricity bills. In several paragraphs of the counter affidavit, it is stated that the petitioner has increased electricity consumption and so demand has been raised after the bills were made.

Be that as it may, the issue in question requires factual inquiry.

We are of the considered opinion that in exercise of jurisdiction under Article 226 of the Constitution of India, it is not possible for the Court to make a factual inquiry to entertain the plea of the petitioner disputing the tariff plan and levy of the electricity bills. Appropriate course for the petitioner would be to approach the Consumer Redressal Grievance Forum under Regulation 7.10 of the U.P. Electricity Regulatory Commission (Consumer Grievance Redressal Forum & Electricity Ombudsman) Regulations, 2007 or to approach the competent authority under the Electricity Supply Code, 2005.

The writ petition is, accordingly, disposed of.

Order Date :- 14.12.2020
SK